

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2025PRDE036840: IN THE MATTER OF RAVI KUMAR THUKRAL
09/17/2026 in Department J6
Hearing on Petition for Waiver of Accounting and Final Distribution**

The court intends to accept the waivers and approve the report.
Approve statutory attorney fees of \$18,823.22. Approve
reimbursement of costs to the attorney in the amount of \$1,320.73.

Proposed distribution: Decedent died intestate with a surviving spouse and two adult children. Pursuant to Probate Code §6401(c)(3)(A), the surviving spouse would be entitled to 1/3 and the children 2/3 of the estate. Petitioner states proposed distribution is to the surviving spouse pursuant to intestate succession and disclaimers.

A disclaimer to be effective must be filed within a reasonable time after the person able to disclaim acquires knowledge of the interest. (Probate Code § 279(a).)

A disclaimer filed within 9 months after the death of decedent is conclusively presumed to be timely. (§ 279(b).)

A disclaimer can be “filed” either with the court or with the personal representative. (§ 280(a).) Here, decedent died on 11/01/24, and the disclaimers are dated 05/20/26. Thus, the disclaimers do not appear conclusively timely.

Probate Code §279(f) states that if the disclaimer is not filed within the time provided in subdivision (b), (c), (d), or (e), the disclaimant has the burden of establishing that the disclaimer was filed within a reasonable time after the disclaimant acquired knowledge of the interest.

Petitioners have not provided any facts re the disclaimer such that the court can determine the reasonableness of the time it was filed.
Petitioner to file a verified supplement re Probate Code §279(f).

The court intends to continue the hearing to 12/09/26 at 9:00 a.m. in Department J6.